



CHAPTER xviii.

An Act to confirm certain Provisional Orders of the Minister of Health relating to the Tees Valley Water Board and the West Monmouthshire Omnibus Board. [28th June 1933.] A.D. 1933.

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made certain provisional orders which need confirmation by Parliament: 38 & 39 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The orders of the Minister of Health which are set out in the schedule to this Act are hereby confirmed and shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (Tees Valley Water Board and West Monmouthshire Omnibus Board) Act 1933. Short title.

[Ch. xviii.] *Ministry of Health. [23 & 24 GEO. 5.]*
Provisional Orders Confirmation (Tees Valley Water Board
and West Monmouthshire Omnibus Board) Act, 1933.

A.D. 1933.

SCHEDULE.

Tees Valley
Water Order.

TEES VALLEY WATER BOARD.

Provisional Order altering a local Act.

WHEREAS by the Tees Valley Water Acts and Orders 1907 to 1930 the Tees Valley Water Board (in this order referred to as "the board") are authorised to construct certain waterworks and to supply water within a large area in the county of Durham and the north riding of the county of York;

And whereas sections 5 and 14 of the Act of 1930 authorised the board to acquire certain lands and easements and to make and maintain the several works mentioned in the said section 5 for the supply by them of water;

And whereas it is enacted by section 20 of the Act of 1930 that the powers of the board for the compulsory purchase of lands for the purposes of Works Nos. 1 and 4 (Conduits Nos. 15 and 18) mentioned in the said section 5 shall cease on the first day of October one thousand nine hundred and thirty-five and for the other purposes of the Act of 1930 shall cease on the first day of October one thousand nine hundred and thirty-three;

And whereas it is enacted by section 21 of the Act of 1930 that if the works authorised by the Act of 1930 are not completed within the period expiring on the first day of October one thousand nine hundred and forty the powers granted by the Act of 1930 for the making thereof or otherwise in relation thereto shall cease except as to so much thereof as is then completed;

And whereas the board have applied to the Minister of Health for the issue of a provisional order to amend the local Acts in the manner following:

Now therefore the Minister of Health in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

Short title
and com-
mencement.

1. This order may be cited as the Tees Valley Water Order 1933 and shall come into operation on the date of the Act of Parliament confirming it.

Interpreta-
tion.

2. In this order—

"the Act of 1930" means the Tees Valley Water Act 1930.

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*Provisional Orders Confirmation (Tees Valley Water Board
and West Monmouthshire Omnibus Board) Act, 1933.*

3. Section 20 of the Act of 1930 so far as it relates to the compulsory purchase of lands for the purposes of Works Nos. 1 and 4 (Conduits Nos. 15 and 18) shall have effect as if the words "first day of October one thousand nine hundred and thirty-eight" had been inserted therein instead of the words "first day of October one thousand nine hundred and thirty-five" and so far as it relates to the compulsory purchase of lands for the other purposes of the Act of 1930 shall have effect as if the words "first day of October one thousand nine hundred and thirty-six" had been inserted therein instead of the words "first day of October one thousand nine hundred and thirty-three."

A.D. 1933.

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*Tees Valley
Water Order.*
Extension of
time for
compulsory
purchase of
lands.

4. Section 21 of the Act of 1930 shall have effect as if the words "first day of October one thousand nine hundred and forty-three" had been inserted therein instead of the words "first day of October one thousand nine hundred and forty."

Extension of
time for
completion
of works.

WEST MONMOUTHSHIRE OMNIBUS BOARD.

Provisional Order altering a local Act.

*West Mon-
mouthshire
Omnibus
Order.*

WHEREAS by the Mynyddislwyn Urban District Council Act 1926 the West Monmouthshire Omnibus Board (in this order referred to as "the board") was constituted for the purpose of providing and running omnibuses within the areas therein mentioned;

And whereas by section 62 of the local Act and Part I of the First Schedule thereto provision is made with regard to the constitution of the board;

And whereas by section 98 of the local Act section 303 of the Public Health Act 1875 which relates to the granting of provisional orders for the repeal alteration or amendment of local Acts extends and applies to the board as if they were a local authority within the meaning of that section;

And whereas the board have applied to the Minister of Health for the issue of a provisional order amending the local Act in the manner following :

Now therefore the Minister of Health in pursuance of the powers given to him by section 303 of the Public Health Act 1875 as applied by section 98 of the Mynyddislwyn Urban District

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*West Monmouthshire
Omnibus
Order.*

Short title
and com-
mencement.

Interpreta-
tion.

Constitution
of board.

Council Act 1926 and of all other powers enabling him in that behalf hereby orders as follows :—

1. This order may be cited as the West Monmouthshire Omnibus Board Order 1933 and shall come into operation on the date of the Act of Parliament confirming it.

2. In this order unless the context otherwise requires—

“ the Act of 1926 ” means the Mynyddislwyn Urban District Council Act 1926 ;

the several expressions “ the board ” “ the Bedwellty council ” “ the Mynyddislwyn council ” and “ constituent authority ” have the same respective meanings as they have in Part VIII (West Monmouthshire Omnibus Board) of the Act of 1926 ;

“ the Bedwellty district ” and “ the Mynyddislwyn district ” mean the district of the Bedwellty council and the district of the Mynyddislwyn council respectively ;
and

“ the commencement of this order ” means the date on which this order comes into operation.

3. For subsection (3) of section 62 of the Act of 1926 there shall be substituted the following provisions :—

“ (3) The constitution of the board shall be as follows :—

The Bedwellty council shall appoint six members and in the first instance the Mynyddislwyn council shall appoint three members :

Provided that in the month of April in the year nineteen hundred and thirty-five and in every subsequent third year and before the annual meetings in such year of the Mynyddislwyn council and the board respectively the number of members of the board to be appointed by the Mynyddislwyn council shall be revised in accordance with the proportion which the rateable value of the Mynyddislwyn district bears to the rateable value of the Bedwellty district according to the valuation lists in force on the first day of April in such year that is to say :—

If the rateable value of the Mynyddislwyn district does not exceed sixty per centum of the rateable value of the Bedwellty district the number of members of the board to be appointed by the Mynyddislwyn council shall be three ;

If the rateable value of the Mynyddislwyn district exceeds sixty per centum but does not exceed seventy-five per centum of the rateable value of the Bedwellty

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district the number of members of the board to be appointed by the Mynyddislwyn council shall be four;

If the rateable value of the Mynyddislwyn district exceeds seventy-five per centum but does not exceed ninety-five per centum of the rateable value of the Bedwellty district the number of members of the board to be appointed by the Mynyddislwyn council shall be five;

If the rateable value of the Mynyddislwyn district exceeds ninety-five per centum of the rateable value of the Bedwellty district the number of members of the board to be appointed by the Mynyddislwyn council shall be six."

4.—(1) As soon as may be after the commencement of this order the constituent authorities shall appoint three additional members of the board in accordance with the provisions of the First Schedule to the Act of 1926 that is to say:—

The Bedwellty council shall appoint two additional members.

The Mynyddislwyn council shall appoint one additional member.

(2) The members of the board holding office at the commencement of this order and the members appointed under subsection (1) of this section shall subject to their being and remaining qualified to be members of the board continue in office until the annual meeting in the year nineteen hundred and thirty-five of the constituent authority by whom they are appointed.

(3) Each constituent authority shall at their annual meeting in the year nineteen hundred and thirty-five and in every subsequent third year appoint the number of members of the board whom they are under the provisions of the Act of 1926 as amended by this order authorised to appoint for the next triennial period and the members so appointed shall subject to the provisions of the First Schedule to the Act of 1926 as amended by this order hold office until the annual meeting of the constituent authority by whom they are appointed in the next subsequent third year.

5. Paragraph 1 and paragraph 2 of Part I of the First Repeal Schedule to the Act of 1926 are hereby repealed.

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A.D. 1933.

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*West Mon-
mouthshire
Omnibus
Order.*

Appoint-
ment of
additional
members
of board.